

January 16, 2026

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VIA E-FILE

The Honorable Alex M. Chintella
Administrative Law Judge
Federal Maritime Commission
Office of the Administrative Law Judges
800 North Capitol Street NW
Washington, DC 20573-0001

Re: FMC Docket No. 24-23
Samsung Electronics America, Inc. v. HMM Co. Ltd.;
Discovery Dispute

Dear Judge Chintella:

We are attorneys for Respondent, HMM Co., Ltd. (“HMM” or “Respondent”). Pursuant to your Honor’s directive at the status conference held on November 21, 2025, we write in lieu of a Motion to Compel to request a conference call to discuss the issuance of an order compelling Samsung Electronics America, Inc. (“SEA” or “Complainant”) to produce information and documents responsive to the two outstanding discovery requests described below.

Preliminary Statement

Since the initial presentation of SEA’s claim, HMM has sought three core categories of information from SEA: (1) identity of the shipments and corresponding claim amounts which comprise SEA’s demand for reimbursement of approximately USD \$100 million in demurrage and detention charges; (2) identify the specific delays affecting those shipments which gave rise to the accrual of the charges claimed; and, (3) explain what HMM did, or failed to do, to cause the delays which gave rise to those charges.

Following the institution of this proceeding, HMM served formal discovery requests seeking this same information.

Interrogatory no. 16 of the Respondent’s Second Set of Interrogatories and Requests for Production of Documents (“Second Requests”) dated August 22, 2025, specifically asked SEA to identify the bills of lading, invoices, container numbers and amounts which comprised its claim

in this proceeding. SEA produced a spreadsheet, Bates No. SEA_HMM-2761333, in response to that request which purports to provide the requested information. It does not.

The requests which are the subject of this application concern Interrogatory nos. 17 and 18, which request that SEA identify the delays experienced by each of the shipments listed on that spreadsheet and explain how HMM caused or contributed to the delays which resulted in damages to SEA. This information has not been provided and, as discussed below, neither the objections raised nor the generic agreement to produce non-privileged documents are an appropriate response to these requests, which go to the core of SEA's claims.

The Discovery Requests At Issue

The discovery requests and SEA's responses are quoted below.

Interrogatory No. 17: For each Subject Shipment, state specifically the cause of all alleged delays relating to the retrieval and return of the containers.

RESPONSE: SEA objects to this Interrogatory on the grounds that it is unduly burdensome and duplicative of HMM's discovery requests provided in its First Set of Interrogatories and First Requests for Production of Documents. In its First Set of Interrogatories, HMM asked SEA to "[i]dentify all facts which You contend support" various causes of delay in the processing and handling of containers, including in Interrogatory Nos. 8 and 9, and additionally asked SEA to produce "[a]ll Documents, including letters, emails and other Communications, which You contend support or which relate to" various causes of delay in the processing and handling of containers, including in Request for Production Nos. 9 and 10. In this Interrogatory, HMM asks for essentially the same set of facts, previously requested, to be presented again in a different summary format. Subject to and without waiver of the foregoing objections, SEA responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody, or control responsive to this Interrogatory.

Interrogatory No. 18: For each Subject Shipment, state specifically how HMM caused or contributed to the underlying transportation delay as alleged in Paragraphs 48, 53, and 67(l) of Your Verified Amended Complaint.

RESPONSE: SEA objects to this Interrogatory on the grounds that it is unduly burdensome and duplicative of HMM's discovery requests provided in its First Set of Interrogatories and First Requests for Production of Documents. In its First Set of Interrogatories and First Request for Production of Documents, HMM asked SEA to "[i]dentify all facts which You contend support" allegations in Paragraphs 48 of its Amended Complaint and additionally asked SEA to produce "[a]ll Documents ... which You contend support" allegations in Paragraph 48 of the Amended Complaint. (See Interrogatory No. 8, and Request for Production No. 9). In this Interrogatory, HMM asks for much of the same set of facts that it previously requested to be presented again in a different summary format. Subject to and without waiver of the foregoing objections, SEA responds that it will answer this Interrogatory by producing non-privileged documents in its possession, custody, or control responsive to this Interrogatory.

Argument

As noted above, the responses at issue refer to answers to interrogatories and responses to document requests propounded in HMM's First Set of Interrogatories and Requests for Production. Generally, the grounds for SEA's objections to those interrogatories and requests included burden, overbreadth, that HMM was in possession of the requested information and documents, and/or that SEA would not have the materials requested. All responses stated that SEA would produce responsive non-privileged documents in its possession custody and control.

This application concerns the deficiencies in SEA's Responses to Interrogatory nos. 17 and 18 of HMM's Second Requests.

The assertion that responsive information and documents are in the custody, possession and control of HMM is not accurate. HMM has some documents in its possession showing that delays occurred with respect to some of the shipments; however, documents and information describing why alleged delays occurred are known only to SEA because it alone controlled events that affected the timing as to when shipments would be picked up and empty containers returned. Importantly, HMM was not copied on all communications between SEA and other relevant actors regarding these events. Examples of these events, the circumstances of which are known only to SEA, are:

- Failures by SEA's warehouses or customers to accept deliveries;
- Failures by SEA's warehouses or customers to accept deliveries in a timely manner;
- SEA's Customer Nominated Truckers ("CNTs")¹ inability or unwillingness to pick up containers at the terminals and make delivery of SEA's shipments – this is critical because, by way of example, there are several documents in SEA's production which confirm that CNTs refused to perform because SEA owed them for significant and unpaid charges;
- SEA's warehouses' use of containers and the chassis on which they were loaded as storage; and,
- SEA's warehouses and/or CNTs inability or unwillingness to return empty containers to the terminals.

¹ A CNT is a motor carrier which is designated by SEA that HMM was compelled to use under the terms of the Service Contracts. SEA contends that HMM controls the CNTs and is responsible for their performance because the shipments moved under "store door" terms. That position is contrary to the clear provisions of the Service Contracts and HMM's tariffs which provide that HMM is only responsible to pay freight charges, negotiated by SEA, which HMM paid solely as agent for SEA. Significantly, under the terms of the Service Contracts and tariffs, SEA remained solely responsible for the non-performance or defective performance of the CNTs. SEA's position on this issue has therefore been credibly rebutted by HMM and, ultimately, will be one of the core issues presented for disposition in this proceeding.

The causes of delays described in the above few examples are facts known only to SEA. It should therefore be compelled to provide substantive responses to the two interrogatories, and identify the documents which support those responses.

The objection that HMM has this information is not accurate for the reasons described above. However, even if this assertion were true, it is not a sufficient basis for SEA to deny the requested discovery to HMM. See *Marine Transport Logistics, Inc. v. CMA CGM, S.A.*, 2024 WL 474879, at *5 (F.M.C. Jan. 31, 2024) (quoting *Cook v. Rockwell Int'l Corp.*, 161 F.R.D. 103, 105 (D. Colo. 1995)).

Notably, the core information which HMM seeks is a burden which SEA must carry to prove its *prima facie* case. Specifically, identifying reasons for the delays affecting the shipments at issue and demonstrating HMM's culpability for those delays is evidence that SEA must adduce to prove its case in this proceeding:

“In the absence of a container-by-container analysis specifying the cause of each charge in dispute, a complainant generally fails to meet its burden to establish that the damages sought proximately resulted from the unreasonable practices alleged.” *Samsung v. SM Line*, FMC Dkt. No. 23-01, Initial Decision, Dkt. 148, at page 54 (emphasis supplied).

See also, TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.:

“Applying the fact-specific, container-by-container analysis used in *Hapag-Lloyd, A.G.*, I find that Complainant does not carry its burden of showing that the charges at issue are unjust or unreasonable as to almost every claim related to the 245 container shipments over which the Commission has jurisdiction.”. FMC Dkt. No. 24-10, Initial Decision, Dkt. No. 35, at page 22

Further, SEA's response that producing non-privileged documents in its possession, custody and control, without identifying those documents, has been rejected. *See, Peloton v. Flexport*, FMC Dkt. No. 24-19, at pages 16-17, in which objections and responses, virtually identical to those discussed herein, were rejected by the Presiding Officer.

Certification Pursuant to FMC Rule 46 C.F.R. 502.141(h)

HMM has attempted to resolve this dispute with SEA without the Presiding Officer's intervention. On December 23, 2025, HMM issued a deficiency letter which described the above issues and requested that SEA's counsel either participate in a conference call to resolve this deficiency or, alternatively, confirm that its position is immutable and that a conference call would not change that position.

SEA responded by letter dated January 9, 2026, which rejected HMM's requests and declined to further supplement its responses. Copies of the parties' respective letters can be provided to the Presiding Office upon request.

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We accordingly request a conference call with the Presiding Officer to discuss the issuance of an Order compelling responses to the discovery requests described above.

Yours truly,

COZEN O'CONNOR

A handwritten signature in black ink, appearing to read "Neil A. Quartaro", written over a horizontal line.

By: Neil A. Quartaro

cc: All Counsel of Record